

CLEANING SERVICES AGREEMENT

This Cleaning Services Agreement (the "Agreement") is entered into as of _____ (the "Effective Date"), by and between:

Tendwell Cleaning Co. LLC, a Tennessee limited liability company with its principal place of business in the State of Tennessee ("Tendwell," "we," "us," or "our"),

and

Owner / Authorized Representative Name:

Entity (if applicable):

Mailing Address:

Property Address(es) Covered by this Agreement:

Email:

Phone:

(the "Owner," "you," or "your").

Tendwell and the Owner are each a "Party" and collectively the "Parties."

1. Services

Tendwell will provide turnover cleaning, restocking, and related housekeeping services (the "Services") at the property or properties listed above (the "Property"), in accordance with the scope, schedule, and pricing communicated to the Owner in writing (including via email, work order, or property management software). Specific cleaning standards, checklists, and turnover requirements may be updated by mutual agreement from time to time.

2. Term and Termination

This Agreement begins on the Effective Date and continues on a month-to-month basis until terminated. Either Party may terminate this Agreement for convenience upon fifteen (15) days' written notice to the other Party. Either Party may terminate this Agreement immediately for material breach if the breach is not cured within seven (7) days of written notice. Termination does not relieve the Owner of payment obligations for Services already performed.

3. Fees and Payment Terms

The Owner agrees to pay Tendwell for all Services at the rates communicated in writing prior to performance. Tendwell will invoice the Owner on a regular cadence (typically weekly or bi-weekly).

- **Payment Terms:** All invoices are due NET 15. Payment must be received in full no later than fifteen (15) calendar days from the invoice date.
- **Late Payments:** Invoices not paid within the Net 15 window are considered past due. Tendwell may, at its sole discretion, assess a late fee of 1.5% per month (or the maximum allowed by Tennessee law, whichever is lower) on any unpaid balance.
- **Suspension of Services:** If any invoice remains unpaid more than fifteen (15) days past the due date, Tendwell may suspend all Services without further notice until the account is brought current, and Tendwell will not be liable for any guest-facing or operational impact caused by such suspension.
- **Collection Costs:** The Owner is responsible for all reasonable costs incurred by Tendwell to collect past-due amounts, including attorneys' fees and court costs.
- **Accepted Payment Methods:** ACH bank transfer, credit card (a processing fee may apply), or other methods pre-approved in writing by Tendwell.

4. Tendwell Insurance Coverage

Tendwell maintains a Commercial General Liability (CGL) insurance policy. This policy provides protection for accidental bodily injury or property damage to third parties caused by Tendwell's operations, subject to the terms, conditions, exclusions, and deductibles of the policy. A current Certificate of Insurance is available to the Owner upon written request. Tendwell will use commercially reasonable efforts to maintain this coverage for the duration of this Agreement.

5. Owner Insurance Responsibility

The Owner acknowledges that Tendwell's insurance is intended to cover Tendwell's operations and does not cover the Owner's property, assets, guests, or business interruption. The Owner is solely responsible for maintaining, at the Owner's expense, all insurance appropriate for the Property and the Owner's business, including but not limited to:

- Property insurance covering the structure, contents, furnishings, fixtures, appliances, and personal property at the Property;
- Short-term rental, vacation rental, or commercial landlord liability insurance appropriate to the Owner's use of the Property;
- Loss-of-income or business interruption coverage, if desired by the Owner;
- Any additional coverage required by the Owner's mortgage lender, HOA, municipality, platform (e.g., Airbnb, Vrbo), or property manager.

The Owner agrees that the Owner's insurance shall be primary with respect to any loss to the Owner's property, and any claim against Tendwell's insurance for damage to the Owner's property shall be excess only. Upon request, each Party will provide the other with a Certificate of Insurance evidencing the coverage described in this Agreement.

6. Waiver and Limitation of Liability

To the maximum extent permitted by law, the Owner releases, waives, and forever discharges Tendwell, its members, officers, employees, contractors, and agents (collectively, the "Tendwell Parties") from any and all claims, demands, damages, or causes of action arising out of or relating to:

- Pre-existing conditions, wear and tear, latent defects, or damage not caused by Tendwell's gross negligence or willful misconduct;
- Loss, theft, or damage to cash, jewelry, firearms, art, collectibles, or other high-value personal items left in unsecured areas of the Property;
- Guest behavior, guest-caused damage, guest claims, chargebacks, refunds, or platform disputes;
- Acts of God, weather events, utility outages, pest infestations, mold, or HVAC/appliance failures not caused by Tendwell;
- Delays, missed turnovers, or service interruptions caused by circumstances beyond Tendwell's reasonable control, including but not limited to severe weather, illness or staffing shortages, road closures, supply chain disruptions, or denial of access to the Property.

IN NO EVENT SHALL TENDWELL OR ANY OF THE TENDWELL PARTIES BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS, LOST RENTAL INCOME, LOST BOOKINGS, OR LOSS OF GOODWILL, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. TENDWELL'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT FOR ANY SINGLE OCCURRENCE SHALL NOT EXCEED THE LESSER OF (A) THE AMOUNT ACTUALLY RECOVERED FROM TENDWELL'S APPLICABLE INSURANCE POLICY FOR THAT OCCURRENCE, OR (B) THE TOTAL FEES PAID BY THE OWNER TO TENDWELL IN THE THREE (3) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

7. Damage Reporting and Claims

Any claim of damage allegedly caused by Tendwell must be reported to Tendwell in writing within five (5) business days of the cleaning visit during which the damage is alleged to have occurred. The Owner must include photographs, a description of the damage, the date of discovery, and any supporting documentation. Claims submitted after this window may be denied. Tendwell will investigate timely claims in good faith and respond within a reasonable period.

8. Indemnification

The Owner agrees to indemnify, defend, and hold harmless the Tendwell Parties from and against any and all third-party claims, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) the Owner's breach of this Agreement; (b) the condition of the Property; (c) the conduct of the Owner's guests, tenants, or invitees; or (d) the Owner's failure to maintain the insurance required under Section 5. Tendwell agrees to indemnify the Owner from third-party claims arising directly out of Tendwell's gross negligence or willful misconduct, subject to the limitations of liability set forth in Section 6.

9. Property Access

The Owner shall provide Tendwell with reliable, lawful access to the Property (keys, codes, lockbox, smart-lock credentials, or similar) sufficient to perform the Services. The Owner is responsible for ensuring access methods remain operational. Tendwell is not responsible for missed or delayed turnovers caused by inoperable locks, expired codes, blocked driveways, or other access failures outside Tendwell's control, and the Owner remains obligated to pay for any trip charge or wasted trip resulting from such access failures.

10. Independent Contractor

Tendwell is an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship between the Parties. Tendwell is solely responsible for its personnel, including wages, taxes, workers' compensation, and compliance with employment laws.

11. Confidentiality

Each Party agrees to keep confidential any non-public information about the other Party's business, operations, pricing, guests, or property security (including access codes) learned in connection with this Agreement, and to use such information only for purposes of performing under this Agreement.

12. Miscellaneous

- **Governing Law and Venue:** This Agreement is governed by the laws of the State of Tennessee, without regard to its conflict-of-laws principles. The exclusive venue for any dispute shall be the state or federal courts located in Sevier County, Tennessee.
- **Entire Agreement:** This Agreement, together with any written work orders or addenda signed by both Parties, is the entire agreement between the Parties and supersedes all prior discussions, proposals, or agreements relating to the Services.
- **Amendment:** This Agreement may only be amended by a writing signed by both Parties.
- **Severability:** If any provision of this Agreement is found unenforceable, the remaining provisions shall remain in full force and effect.
- **Assignment:** Neither Party may assign this Agreement without the other Party's prior written consent, except that Tendwell may assign this Agreement to a successor in connection with a sale, merger, or reorganization of its business.
- **Notices:** All notices must be in writing and sent to the email or mailing address listed on page 1 of this Agreement. Email notice is deemed received on the date sent, provided no bounce-back is received.
- **Counterparts and Electronic Signatures:** This Agreement may be signed in counterparts and via electronic signature (including DocuSign, PandaDoc, or scanned PDF), each of which shall be deemed an original.

13. Signatures

By signing below, each Party acknowledges they have read, understood, and agree to be bound by the terms of this Agreement.

TENDWELL CLEANING CO. LLC

Signature

Printed Name:

Title:

Date:

OWNER / AUTHORIZED REPRESENTATIVE

Signature

Printed Name:

Title / Capacity:

Date:
